

CHAPTER 9.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[5th April 1917.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of five million, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act will expire in the year one thousand nine hundred and seventeen on the following days :— 44 & 45 Vict. c. 58.

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Army (Annual) Act, 1917.

Army Act to be in force for specified times.

2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and seventeen to the thirtieth day of April one thousand nine hundred and eighteen, both inclusive ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and seventeen to the thirty-first day of July one thousand nine hundred and eighteen, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

Prices in respect of billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the Schedule to this Act.

AMENDMENTS OF THE ARMY ACT.

Amendment of s. 154 of the Army Act with respect to deserters and absentees without leave

4. After paragraph (8) of section one hundred and fifty-four of the Army Act which relates to deserters and absentees without leave, the following paragraph shall be inserted :—

“(9) Where a person surrenders himself to a constable in the United Kingdom as being a deserter or absentee without leave, the officer of police in charge of the police station to which he is brought shall forthwith inquire into the case, and if it appears to him from the confession of that person that that person is a deserter or absentee without leave, he may cause him to be delivered into military custody without bringing him before a court of summary jurisdiction under this section, and in such case shall send to the Army Council or as they may direct a certificate signed by himself as to the fact, date, and place of such surrender.”

5.—(1) For paragraph (j) of section one hundred and sixty-three of the Army Act, which relates to evidence, the following paragraph shall be substituted :—

Amendment of s. 163 of the Army Act relating to evidence.

“(j) Where the proceedings are proceedings against an officer or soldier on a charge of being a deserter or absentee without leave, and the officer or soldier has surrendered himself into the custody of a provost marshal, assistant provost marshal or other officer, or any portion of His Majesty’s forces, a certificate purporting to have been signed by such provost marshal, assistant provost marshal or other officer, or by the commanding officer of the portion of His Majesty’s forces to whom the surrender or by whom the arrest was made, and stating the fact, date, and place of such surrender or arrest shall be evidence of the matters so stated.”

(2) After the said paragraph (j) the following paragraph shall be inserted :—

“(k) Where the proceedings are proceedings against an officer or soldier on a charge of being a deserter or absentee without leave and the officer or soldier has been delivered into military custody by a police officer in charge of a police station in the United Kingdom, a certificate purporting to be signed by such police officer, and stating the fact, date, and place of the surrender of the officer or soldier shall be evidence of the matters so stated.”

SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sixpence each.
Dinner as so specified - - - - -	One shilling and twopence each.
Supper as so specified - - - - -	Fourpence each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Two shillings and fourpence per day.
Stable room without forage - - - - -	Sixpence per day.
Lodging and attendance for officer - - - - -	Two shillings per night.

Note.—An officer shall pay for his food.